

THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

Jail Petition No.639/2021& Criminal Petition No. 240-L/2022

(On appeal against the judgment dated 01.12.2021, passed by the Lahore High Court, Lahore in Criminal Appeal No.46468 of 2017)

Muhammad Riaz and 5 others (in J.P.No.639/2021)
Nasir Javaid (in CrI.P.L.A.No.240-L/2022)

...Petitioner(s)

VERSUS

The State (in J.P.No.639/2021)
Muhammad Riaz, etc (in CrI.P.L.A No.240-L/2022)

...Respondent(s)

For the Petitioner(s): Mr. Basharat Ullah, ASC

For the Respondent(s): Mr. Asghar Ali Gill, ASC

For the State: Mr. Sajjad Hussain, DPG, Punjab

Date of hearing: 11.12.2025

JUDGMENT

ISHTIAQ IBRAHIM, J.-Petitioners, Muhammad Riaz, Muhammad Maqsood alias Bao, Mashooq Ali, Subah Sadiq alias Sobay Khan, Rasheed alias Sheedu, Muhammad Arshad alias Billy and Abdul Hameed alias Hameed along with co-accused Muhammad Aslam, Muhammad Ashraf and Muhammad Anwar, charged in case FIR No.13 dated 11.01.2014, registered under sections 302, 324, 427, 337-F(iii), 337-F(iv), 337-F(v), 337-F(vi), 148 and 149 of the Pakistan Penal Code, 1860 (**‘PPC’**), read with section 7 and 21-L of the Anti-Terrorism Act, 1997 (**‘ATA’**) registered at Police Station Mustafabad, Kasur, were tried by the Anti-Terrorism Court-I (**‘ATC-I’**) Lahore (**‘Trial Court’**). Upon conclusion of trial, the Trial Court vide judgment dated 26.05.2017, acquitted co-accused Muhammad Aslam, Muhammad Ashraf and Muhammad Anwar, however, convicted and sentenced the petitioners as under:-

Under Section 302(b) PPC: To death on four counts each and each to pay Rs.3,00,000/- as compensation under section 544-A of the Code of Criminal Procedure, 1898 (**‘the Code’**) to legal

heirs of each deceased and in default thereof to further undergo six months simple imprisonment (**S.I.**)

Under Section 7(a) ATA: To death on four counts each and each to pay Rs.3,00,000/- as compensation under section 544-A of the Code to legal heirs of each deceased and in default thereof to further undergo six months S.I.

Under Section 324 PPC: To undergo rigorous imprisonment for seven years each and to pay Rs.50,000/- each as fine and in default thereof to further undergo one-month S.I. each.

Under Section 337-F(vi) PPC: To undergo rigorous imprisonment for seven years each and to pay Rs.50,000/- each to legal heirs of Yaqoob deceased and in default thereof the same shall be treated under section 337-Y PPC.

Under section 148 PPC: To undergo imprisonment for three years each and to pay Rs.10,000/- each as fine and in default thereof to further undergo one-month S.I. each.

Under Section 427 PPC: To undergo imprisonment for two years each and to pay Rs.10,000/- each as fine and in default thereof to further undergo 15 days S.I. each.

All the sentences of substantive imprisonments were directed to run concurrently. Benefit of Section 382-B of the Code was extended to the petitioners.

2. The petitioners-convicts challenged their convictions and sentences before the Lahore High Court, Lahore (**'the High Court'**) by filing Criminal Appeal No. 46468 of 2017. The Trial Court also submitted Murder Reference No. 10-T of 2017 to the High Court for confirmation or otherwise of the death sentences awarded to the petitioners-convicts. The complainant, Nasir Javed, filed Criminal Appeal No. 47443 of 2017 against the acquittal of the co-accused named above.

3. The learned High Court, while partially allowing the appeal of the petitioners-convicts, set aside the conviction and sentences of convict Mashooq Ali and acquitted him of the charge. The convictions and sentences of the petitioners-convicts under Section 7(a) of the Anti-Terrorism Act were also set aside. However, their convictions under Section 302(b) PPC were maintained, though the death sentences awarded by the Trial Court were commuted to imprisonment for life on four counts. Likewise, the convictions and sentences of the petitioners-convicts under Sections 324, 337-F(vi), 148, and 427 PPC were upheld. All the sentences were directed to run concurrently, and

the benefit of Section 382-B of the Code of Criminal Procedure, 1898 was extended to them vide judgment dated 01.12.2021 (**‘impugned judgment’**). The criminal Appeal filed by the complainant against acquittal of co-accused was also dismissed through the same judgment.

4. Through the instant Jail Petition No. 639 of 2021, the petitioners-convicts have assailed the convictions and sentences recorded against them through the impugned judgment. Conversely, the complainant, Nasir Javed, has filed Criminal Petition for Leave to Appeal No. 240-L of 2022, seeking enhancement of the sentence of the convicts-respondents from imprisonment for life to the normal penalty of death as prescribed for the offence under Section 302 PPC. The complainant has not filed any Petition for Leave to Appeal against the acquittal of co-accused.

5. The prosecution’s case, as narrated in the First Information Report (**“FIR”**) registered on the written complaint (Exh. PN) of the complainant, Nasir Javed (PW-13), is that on 11.01.2014 he, along with his brother Masood Ahmad Bhatti, Babar Sarfaraz, Khalid Bashir, Ameer Ali, Umer Farooq (PW.13), Ijaz Ahmad, Mehmood Ahmad, Muhammad Irfan, Yaqoob, and Zia Ullah, was travelling to Lahore in two motorcars and a *Vigo Dala* in order to attend a *Mehfil-e-Milad* to be held at the house of Masood Bhatti. At about 5:00 p.m., when their vehicles crossed the Mustafabad Toll Plaza, two motorcars and three motorcycles overtook them and forcibly intercepted the *Vigo Dala* of Masood Ahmad Bhatti; that he saw accused Muhammad Riaz, Maqsood, Arshad Ali alias Billy, Rasheed alias Shadu, Ashraf, Aslam, Hameed Pandoki Wala, and Anwar Sidhupuray Wala, all armed with Kalashnikovs, along with accused Subeh Sadiq, who was armed with M-16 rifle, and six other unknown accused, armed with deadly weapons. All the above-named accused disembarked from their vehicles and opened indiscriminate firing at the *Vigo Dala* of Masood Bhatti. As a result, all the persons seated in the said *Vigo Dala* got hit with the fire shots and died on the spot; that the accused persons seated in another vehicle coming from behind also opened indiscriminate firing upon Zia Ullah and Yaqoob alias Sahib. Consequently, Zia Ullah sustained firearm injuries and died at the

spot, whereas Yaqoob received serious firearm injuries. The complainant and others seated in the third vehicle witnessed the entire occurrence. The motive behind the occurrence, as alleged in the FIR, was that about 2 to 3 months prior to the incident, one Siraj Bhatti and his son had been murdered, and the accused strongly suspected Masood Bhatti to be responsible for their murder. It was on this account that the accused persons allegedly committed the present offence.

6. Upon the arrest of the petitioners-convicts and the acquitted co-accused, and after completion of the investigation, a report under Section 173 of the Code was submitted against them before the Trial Court. After facing a full-dressed trial, the petitioners were convicted and sentenced by the Trial Court. Their convictions and sentences were subsequently modified by the High Court vide the impugned judgment while deciding their appeal, as detailed earlier in this judgment.

7. We have heard the learned counsel for the parties as well as the learned Deputy Prosecutor General, Punjab, and, with their able assistance, have carefully perused the record, the evidence, and the impugned judgment.

8. As borne out from the record and the evidence brought on record, the unfortunate incident, in which five persons, namely, Masood Ahmad Bhatti, Babar Sarfaraz, Khalid Bashir, Ameer Ali, and Zia Ullah, the deceased, were done to death by firearm injuries, and two persons, namely, Rasheed Masih (PW-15) and Muhammad Yaqoob (*subsequently murdered*), allegedly sustained firearm injuries, took place on 11th January, 2014 at about 5:00 p.m., near the *Mustafabad Toll Plaza*, situated on the main G.T. Road. The occurrence was reported with promptitude by the complainant Nasir Javed (PW-13), to the police at about 6:30 p.m. In his initial report, the complainant directly nominated the petitioners-convicts along with acquitted co-accused and attributed to them a specific role of indiscriminate firing upon the *Vigo Dala* of Masood Ahmad Bhatti (deceased).

9. The ocular account of the incident has been furnished by the complainant (PW-13), Umer Farooq (PW-14), and the injured witness

Rasheed Masih (PW-15). Upon thorough scrutiny of the testimonies of the complainant and PW Umer Farooq, we find that they are consistent with each other on all material particulars of the occurrence, including the day, date, time, and place of the incident, as well as the manner and mode in which it was committed. Both the eyewitnesses have satisfactorily explained their presence at the scene at the relevant time, as they were accompanying the deceased in a separate motorcar while proceeding to Lahore to attend a *Mehfil-e-Milad* to be held at the house of Masood Ahmad Bhatti (deceased). Despite lengthy and intense cross-examination, nothing beneficial to the defence or adverse to the prosecution could be elicited from the complainant or PW Umer Farooq with regard to the role attributed to the petitioners-convicts. No material was brought on record to suggest that the eyewitnesses were not present at the spot at the time of occurrence. Although the two eyewitnesses did not sustain any firearm injuries, it has consistently been the prosecution case that about 2 to 3 months prior to the incident, one Siraj Bhatti and his son had been murdered, and the accused strongly suspected Masood Ahmad Bhatti deceased to be responsible for their murder. In addition to above, the two eyewitnesses were travelling in a separate vehicle; therefore, the fact that they did not receive any firearm injuries does not render their presence at the spot doubtful. Even otherwise, in case titled, “Noor Muhammad Vs the State and another” (PLJ 2006 SC 177), this Court has held that:-

“Relative to the contention that presence of two eyewitnesses namely Niaz Muhammad and Pervez Khan is highly doubtful as inspite of indiscriminate firing by the petitioner and two absconding accused they did not receive any injury is without any substance. It is not the first case of its kind wherein some other persons who were under attack by the opposite party did not receive any firearm injury whereas others received one or more than one firearm injuries. There cannot be presumption or rule that all the persons who were under attack from firearms ought to have received injuries and the mere fact that some of them did not receive injuries would not make their presence at the place and time of incident doubtful. This contention is also devoid of force and is repelled. In support of the above proposition judgment in the case of Mehboob Sultan and two others Vs the State (2001 SCMR 163) is referred”.

Same view has been reiterated by this Court in case titled, “Nisar alias Nasiree and another vs the State and another (2021 SCMR 1614), by holding that survival of complainant/witness unscathed during the assault, by itself, could not imply is absence from the scene and as such did not undermine his status as a witness worthy of credence.

10. The presence of Rasheed Masih (PW-15), who was not named by the complainant as an eyewitness in the FIR, has rightly been discarded by the High Court for cogent and convincing reasons. He was not shown by the complainant in his report as their associate in any of the vehicle. Besides, he had sustained a single firearm injury near his right ankle joint without any fracture for which he had not charged any of the petitioners-convicts in his statement. The contention raised by the learned counsel for the petitioners-convicts that the occurrence took place after sunset, rendering identification of the assailants doubtful, and that the prosecution manipulated the time of occurrence by showing it as 5:00 p.m. to overcome this deficiency, has been plausibly and satisfactorily dealt with by the High Court. The relevant portion of the findings recorded by the High Court in this regard is reproduced hereinbelow:

“The deposition of the eyewitness is mainly challenged on the ground that the actual incident occurred much after the sun-set and in order to get rid of complication of darkness at the crime scene, the eventful time was canvassed as 5.00 p.m. In this regard, learned counsel for the appellants made reference to the record of Rescue-15 Exh.DN, emergency Service-1122 Exh.DO and Police Log Book Exh.DQ. So far as Exh.DN is concerned, it evinces therefrom the relevant entry was made by Abid Mehmood SI at 06.50 p.m. but after his return from the crime scene. Obviously, 06.50 p.m. mentioned in Exh.DN is not the time of incident rather it pertains to the return of Abid Mehmood SI to Police Centre. So far as Exh.DO is concerned, no witness from Rescue-1122 appeared in the dock for providing credibility to this document, thus, on this score alone it is excluded from consideration. As regard Exh.DQ it pertains to an information received at 06.55 p.m. through a phone call made by an unknown person, whereby, he reported about the crime. Suffice it to say that Exh.DQ lost is significance keeping in view, the entry made by Abid Mehmood SI in Exh.DN whereby he returned to Rescue-15 at 06.50 p.m. Admittedly, it reasonably

evinces from Exh.DN that much before 06.55 p.m. police had gathered information about the crime. To be precise the aforesaid documents in no manner cast doubt about the time of occurrence mentioned in the First Information Report. Keeping in view the time of occurrence as 05.00 p.m. there was sufficient light at the crime scene so as to exclude every possibility of mistaken identification...”.

11. Upon perusal of the exhibits referred in the above referred para, we find ourselves in agreement with the findings recorded by the learned High Court and are of the considered view that it has rightly determined the time of occurrence to be 5:00 p.m. At that hour, it was not completely dark; therefore, the question of mistaken identity does not arise.

12. In addition to the above, the testimony of Dr. Muhammad Ahmad (PW-3) and Dr. Ismail Zia (PW-20), who conducted the post-mortem examinations on the dead bodies of Masood Ahmad Bhatti, Ameer Ali, Babar Sarfaraz, and Khalid Bashir, lends substantial support to the prosecution case. The post-mortem examinations were conducted on the very night of the occurrence without any undue delay. The prompt conduct of the autopsies reflects the immediate reporting and registration of the FIR and effectively rules out the possibility of deliberation or concoction. The Medical Officers noticed multiple firearm injuries on the bodies of the deceased, namely, eighteen firearm injuries on Masood Ahmad Bhatti, eleven on Babar Sarfaraz, thirteen on Khalid Bashir, and five on Ameer Ali. These injuries were sufficient in the ordinary course of nature to cause death and resulted in the unnatural deaths of the deceased persons. Furthermore, during spot inspection, as many as 700 empties of 7.62 bore and 25 empties of .223 bore were recovered, which commensurate with the number of accused charged in the FIR. Although the learned High Court, on the ground that no PFSA report was produced to match these empties with the crime weapons allegedly recovered on the pointation of the petitioners, held them to be inconsequential, it is nevertheless evident from the sheer number of empties that multiple persons were involved in the occurrence. The findings of the learned High Court regarding non-proof of motive are also based on proper appreciation of the material on record. The learned High Court has

rightly taken into account inconsequential recovery and the non-proof of motive as mitigating circumstance for commuting the death sentences of the petitioners into imprisonment for life.

13. The learned High Court, while applying the well-settled principle of separating the grain from the chaff, has rightly arrived at the conclusion that the petitioners-convicts are guilty of the offences as recorded in the impugned judgment. The findings of the High Court, including the modification of the sentences of the petitioners-convicts, are grounded in a correct application of the law as settled by this Court. The acquittal of the co-accused recorded by the Trial Court, maintained by the High Court and acquittal of co-accused Mashooq Ali by the High Court have not been questioned before this Court. We find no illegality, irregularity, misreading, or non-reading of evidence that would warrant interference by this Court in the impugned judgment. Accordingly, Jail Petition No. 639 of 2021 is dismissed, and leave is refused.

Criminal Petition No.240-L of 2022

14. We find no cogent evidence or persuasive reason to take a view different from that adopted by the High Court with respect to the sentence of the convicts-respondents. Consequently, this petition seeking enhancement of sentence is also dismissed, and leave is refused.

Judge

Judge

Judge

Announced in open Court at Islamabad on _____

Judge

Islamabad the

11th December, 2025

M.Siraj Afridi PS

Not approved for reporting